BY ORDER OF THE COMMANDER
99TH AIR BASE WING (ACC)

AIR FORCE INSTRUCTION 34-219

NELLIS AIR FORCE BASE
Supplement

3 JANUARY 2024

Services

ALCOHOLIC BEVERAGE PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at www.e-Publishing.af.mil for downloading or ordering

RELEASABILITY: There are no releasability restrictions on this publication

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OPR: 99 FSS/FSW

Certified by: 99 FSS/CC
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Supersedes: AFI34-219_NELLISAFBSUP 23 May 2016

Pages: 18

Air Force Instruction (AFI) 34-219, *Alcoholic Beverage Program*, 30 April 2019, is supplemented as follows: This supplement outlines Nellis/Creech AFBs procedures to control, sell and use alcoholic beverages. It applies to all personnel who sell, serve, purchase and consume alcohol on Nellis and Creech AFBs. This supplement applies to Air National Guard (ANG) units, United States Air Force Reserve (USAFR) units and other units either assigned or TDY to Nellis/Creech AFBs. Failure to observe prohibitions and mandatory provisions of this supplement in Paragraphs **1.3.1.1**, **3.1.2** and **2.1.6.2.1** by military personnel is a violation of Article 92, *Uniform Code of Military Justice* (UCMJ). Violations may result in administrative disciplinary action without regard to otherwise applicable criminal or civil sanctions for violations of related laws. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication.* Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS).

SUMMARY OF CHANGES

This supplement substantially revises AFI 34-219 and should be completely reviewed. This revision updates local base activities that may sell or serve alcoholic beverages during normal operating hours in **Paragraph 2.1.1** to reflect the removal of Anthony's Pizza and the addition of Creech Express, Nellis Main Exchange, and Nellis Commissary.

Chapter 1

PROGRAM ELEMENTS

1.1. Scope. This instruction provides guidance for all personnel that procure, sell, serve or consume alcoholic beverages on Air Force installations or aircraft.

1.2. Overall Intent and Guidance Concerning Consumption of Alcohol on AF Installations. The intent of this AFI is to empower commanders with the authority to permit the consumption of alcoholic beverages by Airmen and guests on a limited basis. In the process, leadership will deglamorize behavior associated with excessive drinking and avoid inappropriate and disorderly conduct. (T-1) It is also the intent of this instruction to ensure bystander Airmen are not negatively affected by this privilege or the unit does not become vulnerable to becoming an unprofessional or hostile work environment. It is critical that commanders ensure their entire team is afforded the same consistent work environment, avoiding scenarios where two disparate levels of professionalism (normal duties co-located with members consuming alcoholic beverages) are allowed to coexist and detract from the mission. Commanders will ensure their team possesses a culture of professionalism where people do not consume alcohol during professional time or while performing official duties. Commanders will develop compliance with the following mandatory guidelines:

1.2.1. All Airmen, including uniformed military members and civilians, at all times, adhere to AFI and appropriate wing supplements regarding alcohol consumption in government facilities. (T-1)

1.2.2. Alcohol may only be consumed in government facilities at commander-approved times and locations, ensuring mission and unit readiness are not negatively affected. (T-1) Alcohol may not be consumed by members while performing official duties. (T-1) This authority may be delegated to the deputy commander only in the absence of the commander.

1.2.3. Alcohol consumption within squadron or unit government facilities is permitted for Airmen and their guests during commander-approved sessions, celebrations or social events. (T-1)

1.2.4. Airmen and their guests maintain professional relationships and proper decorum at all times while consuming alcohol in government facilities. (T-1)

1.2.5. Consuming alcohol in government facilities under the aforementioned guidelines is a privilege and all personnel do so responsibly in every situation. (T-1) Commanders always ensure a safe and professional environment for all Airmen. (T-1)

1.3. Roles and Responsibilities

1.3.1. HQ USAF/A1S issues policy, guidance and instructions on controlling, selling, procuring, and using alcoholic beverages.

1.3.2. **(Added)** Personnel under the age of 21 shall not possess, purchase or consume alcoholic beverages in Las Vegas, Nevada, to include Nellis and Creech Air Force Bases and the Nevada Test and Training Range facilities.

1.3.3. The Air Force Sexual Assault Prevention and Response (SAPR) office develops curriculum and facilitator's guide for Bystander Intervention Training (BIT) for alcohol servers.

1.3.4. MAJCOM commanders, through their Force Support Squadron staffs, enforce this AFI.

1.3.5. The Army and Air Force Exchange Services (AAFES) oversees all Class Six packaged beverage operations on Air Force bases in accordance with AFI 34-203, *Board of Directors, Army and Air Force Exchange Service (AAFES).*

1.3.6. Installation commanders will oversee installation alcoholic beverage programs and enforce this AFI. (T-0) Furthermore, commanders at all levels, per AFI 1-2 and this instruction, are responsible for ensuring healthy and professional work environments and to follow the spirit, intent and guidance of this instruction. Installation commanders are encouraged to work with community partners on responsible alcohol sales practices and bystander intervention training for alcohol servers at establishments frequented by Airmen.

1.3.7. The Vice President of the AAFES region and the Commander of AFSVC settle any disputes the installation commander and local AAFES official cannot resolve. Send information copies of the dispute to Headquarters AAFES, Strategic Planning and Communications Directorate (HQ AAFES/PL) and the Commander of AFSVC.

1.3.8. Installation Sexual Assault Response Coordinators (SARCs) facilitate Bystander Intervention Training (BIT) and provide a list of attendees to the Force Support Squadron.

1.4. General Requirements of the Alcohol Beverage Program.

1.4.1. Commanders will ensure the minimum age for purchasing, serving, selling, possessing, or drinking alcoholic beverages on Air Force bases is consistent with the law of the state, territory, possession or foreign country in which the installation is located. (T-0) Airmen under the prescribed legal age (by the law of the state, territory, possession or foreign country) for consumption of alcoholic beverages are likewise prohibited from consumption (inhaling, ingesting or inoculation) of powdered alcohol, whether in liquid or powdered form. (T-0) Underage Airmen may not possess, sell, consume, or distribute powdered alcohol. Military members will obey the mandatory provisions in this paragraph or suffer a violation of Article 92 of the UCMJ. (T-0)

1.4.2. Commanders will prohibit the sale of powdered alcohol on AF bases. (T-1)

1.4.3. Servers and sellers of alcoholic beverages must verify the purchaser's age with a photo identification card (e.g. active duty identification card, driver's license, passport, reserve identification card, or family identification and privilege card). (T-0)

1.4.4. Adults will not provide alcoholic beverages to minors except in accordance with applicable state laws. (T-0) Military members will obey the mandatory provision in this paragraph or suffer a violation of Article 92 of the UCMJ. (T-0)

1.4.5. As states enact new drinking-age laws, installation commanders must make corresponding changes in base drinking-age guidance. (T-0)

1.4.6. The Air Force, consistent with mission needs, will cooperate with federal, state and local officials; however, there is no legal obligation to submit to state or local control or regulation. (T-0)

1.5. Program Exceptions.

1.5.1. The installation commander will not delegate the approval authority for exceptions to the minimum drinking age. (T-0)

1.5.2. The installation commander must obtain approval from AFSVC/JA to approve the following exception to standard guidance if state and federal law permit: When an entire unit marks

a unique or non-routine military occasion on a military installation, the minimum drinking age for attendees at a particular unit gathering may be lowered. Minimum drinking age for entire unit unique or non-routine military occasions must be 18 or above. (T-0)

1.5.3. The installation commander may approve exceptions for any combination of beverages, including the following common groupings (each approval document must specifically state the alcoholic beverages that the exception covers):

1.5.3.1. Beer only. (T-0)

1.5.3.2. Wine coolers and other low-alcoholic beverages with less than seven percent alcoholic content by volume. (T-0)

1.5.3.3. Beer and wine only. (T-0)

1.5.3.4. Beer, wine and distilled spirits. (T-0)

1.5.3.5. The installation commander shall reevaluate the exceptions annually and send an information copy of the continued exceptions to the Commander of AFSVC. (T-2)

1.6. Dram Shop Liability. The "Dram Shop" theory is a legal theory of liability, created either by statute or court decision, which imposes upon the owner, operator and (or) employees of any establishment serving alcoholic beverages the duty to refuse to serve additional alcoholic beverages to a customer who reaches or appears to be reaching the point of intoxication. When an establishment continues to sell alcoholic beverages to such a customer and the customer subsequently departs and causes harm to himself or herself, or to others, the owner, operator and (or) employees of the establishment can be held liable for damages. To protect the assets and interests of Nonappropriated Fund Instrumentalities (NAFIs) and the Air Force, personnel must adhere to the following procedures.

1.6.1. Force Support Squadron (FSS) Flight Chiefs write and publish operating instructions (OIs) that prohibit personnel from serving alcoholic beverages to individuals who appear intoxicated or close to being intoxicated. The OIs must emphasize: (T-1)

1.6.1.1. The importance of curtailing alcohol or drug influenced incidents. (T-1)

1.6.1.2. The principles of Bystander Intervention. (T-1)

1.6.1.3. The responsibilities of employees in carrying out the drunk and drugged driving program. (T-1)

1.6.1.4. The importance of encouraging patrons to use a "designated driver" or "buddy" system. (T-1)

1.6.1.5. Supervisors must ensure servers record their understanding of Dram Shop theory of liability in the employee’s work folder, Supervisor’s Employee Brief, or by signing underneath this statement, “I understand my responsibility under the Dram Shop theory of liability not to sell or serve alcoholic beverages to persons who appear to be nearing intoxication and not in complete control of their faculties.” Supervisor will place the signed statement in the comments section of the employee’s work folder. (T-1)

1.6.1.6. AAFES prescribes the statement to be signed by all AAFES employees.

1.6.2. Activity managers ensure proper safeguards or controls to protect the welfare of an intoxicated patron. (T-1)

1.6.3. Activity managers promptly report any incident that may result in a potential claim to the Force Support Squadron commander or civilian leader (refer to AFMAN 34-208, *Nonappropriated Fund Property and Liability Program*). (T-1) AAFES activity managers' report to the AAFES general manager for the base. (T-0)

1.7. Drunk and Drugged Driving Program and Bystander Intervention. Under the direct guidance of the installation commander, the Force Support Squadron commander or civilian leader and AAFES manager must be familiar with the spirit and intent of all Air Force initiatives to eliminate drunk or drugged driving incidents, as well as initiatives to eliminate sexual assault and other misconduct involving patrons of base FSS and AAFES facilities. (T-1)

1.7.1. The installation's Sexual Assault Response Coordinator (SARC) responsibilities include providing all FSS personnel who serve alcohol Bystander Intervention Training within 90 days of employment and providing a list of attendees for training sessions to the Force Support Squadron. Volunteers serving alcohol at events approved by the installation commander, either on or off the installation, must receive BIT prior to the event. (T-1)

1.7.1.1. Minimally, an alcohol server is required to successfully complete BIT once. (T-1)

1.7.2. The installation commander will verify the Force Support Squadron commander or civilian leader holds annual training programs to familiarize beverage supervisors and servers with Air Force policies. (T-1)

1.7.3. The FSS commander or civilian leader will:

1.7.3.1. Require the training to cover: principles of Dram Shop liability; methods for identifying intoxicated patrons; and recommended procedures to prevent individuals from driving under the influence of alcohol. (T-1)

1.7.3.2. Require documentation of all Dram Shop, BIT and annual training in employee's work folder. (T-1)

1.7.3.3. Maintain a record of Dram Shop and Bystander Intervention Training completed by volunteers. (T-1)

1.7.4. Supervisors will document all training in each employee's work folder. (T-1)

1.7.5. Flight chiefs must develop OIs for activities serving alcoholic beverages which includes provisions of the alcohol deglamorization program. (T-1)

1.7.6. AAFES is only required to conduct and document "Techniques for Alcohol Management" training for its employees.

1.8. Alcohol Deglamorization Program. Installation commanders, AAFES managers and FSS Commanders, Civilian Leaders, Flight Chiefs and Activity Managers will implement the Air Force's Alcohol Deglamorization Program at the base level. (T-1)

1.8.1. To oversee the base program, installation commanders follow these procedures:

1.8.1.1. Ensure activities serving alcoholic beverages do not promote excessive drinking.

1.8.1.2. Ensure activities serving alcoholic beverages also offer nonalcoholic beverages.

1.8.1.3. Establish in writing the hours during which alcoholic beverages by the drink are sold on the installation.

1.8.1.4. Coordinate the hours of operation for package beverage sales with AAFES to provide reasonable service, meet local conditions and recognize the unique mission of military personnel.

1.8.1.5. Ensure there is no issuance of coupons for reduced prices on alcoholic beverages.

1.8.1.6. Ensure alcoholic beverages are not provided free of charge except for promotional tasting as approved by the installation commander.

1.8.2. The following guidance applies at all Air Force installations but the installation commander can provide waivers on a case-by-case basis. The installation commander will not delegate the waiver authority. (T-2)

1.8.2.1. AAFES managers and FSS activity managers will observe the following procedures when offering alcoholic beverages, by the drink, at reduced prices:

1.8.2.1.1. Keep designated social hours periods to 10 hours or fewer per week and no more than 2 hours per day. (T-3)

1.8.2.1.2. Make snacks or food available. (T-3)

1.8.2.1.3. Reduce prices no more than 50 percent except for beverages offered as complimentary with a meal. (T-3)

1.8.2.1.4. Do not serve two-for-one drinks. (T-3)

1.8.2.2. FSS activity managers will adhere to these procedures when operating bars:

1.8.2.2.1. Do not operate pro rata bars that require nondrinkers to share the cost of alcoholic beverages unless a pay-as-you-go bar isn't practical or all the members of a group volunteer to share the cost. (T-3)

1.8.2.2.2. Do not include the cost of alcoholic beverages in a package price for a meal, party or other function (includes dining-in or out) without offering a comparable nonalcoholic option. (T-3)

1.8.2.2.3. Do not use terms that glamorize alcoholic beverages or their consumption ("sick calls," "attitude adjustment hours," and so on). (T-3)

1.8.2.2.4. Use the term "social hour" in all written advertisements and provide a range of programs that include more than just reduced prices on alcoholic beverages. (T-3)

1.8.2.2.5. Reduce prices for nonalcoholic beverages when reducing prices for alcoholic beverages. (T-3)

1.8.2.2.6. Make a complimentary alcoholic beverage part of a meal only in appropriate cases (for example, with birthday or anniversary meal programs). In all cases, make nonalcoholic beverages available as an optional complimentary drink. (T-3)

1.8.2.2.7. Prohibit drinking contests. (T-3)

1.8.2.2.8. Do not use "last call" or other countdown events designed to promote last- minute sales. (T-3)

1.8.2.2.9. Do not increase the alcoholic content of a drink beyond the standard bar recipe without increasing the price. (T-3)

1.8.2.2.10. Complimentary nonalcoholic beverages are offered in association with a designated driver program. (T-3)

1.8.2.2.11. Establish a standard shot size not to exceed 1.5 ounces. (T-3)

1.9. Purchasing Alcoholic Beverages for Resale. Air Force Nonappropriated Fund Instrumentalities (NAFIs) must purchase alcoholic beverages from the most competitive source possible, with the following restrictions:

1.9.1. Installations in the continental United States (CONUS), Alaska and Hawaii are not authorized to purchase powdered alcohol. Installations in the CONUS, Alaska and Hawaii purchase wine and malt beverages for resale from the most competitive in-state source. (T-0) An in-state source delivers the order unless purchases are made through AAFES.

1.10. Registration and Taxation. NAFIs that buy and sell alcoholic beverages must observe the following federal regulations:

1.10.1. In the United States, a NAFI (Morale, Welfare and Recreation Fund (MWRF), Lodging Fund, AAFES, and other NAFIs) cannot transfer alcoholic beverages to another NAFI for reimbursement unless the transferring NAFI has a Federal Liquor Wholesaler's Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco and Firearms (ATF). (T-0)

1.10.2. In the United States, each NAFI that sells retail alcoholic beverages is registered with the Alcohol and Tobacco Tax and Trade Bureau (ATTB). AFSVC/SVFM maintains a central registration for each NAFI. (T-0)

1.10.3. Each NAFI that sells alcoholic beverages needs only one registration, regardless of how many annexes or retail outlets that NAFI operates on the installation. (T-0)

1.10.4. Each NAFI operating retail outlet at a geographically separated off-base (for instance, at an off-base recreation area) location has a separate registration. (T-0)

1.10.5. A NAFI that holds a valid federal wholesaler's occupation tax stamp does not need a federal retail occupation tax stamp. (T-0)

1.10.6. A NAFI that transfers alcoholic beverages to other NAFIs on a reimbursable basis posts a sign that can be seen from outside the building that reads "Wholesale Liquor Dealer”. (T-0)

1.10.7. A NAFI provides Bureau of Alcohol, Tobacco and Firearms (ATF) officers with purchase orders, invoices, stock record cards, inventories, and other related documents on request. (T-0)

1.10.8. A NAFI obtains information and forms to apply for wholesale or retail alcoholic beverage permits and tax stamps from the Department of the Treasury, Internal Revenue Service, Bureau of Alcohol, Tobacco and Firearms, 1401 H. Street NW, Suite 900, Washington DC 20226-5000. (T-0)

1.10.9. If a NAFI contracts with a concessionaire to sell alcoholic beverages at MWR events, the concessionaire operator is required to purchase, at no cost to the government, a Federal Liquor Wholesaler's or Retailer’s Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco and Firearms. (T-0)

1.10.10. NAFIs are exempt from all non-federal regulations and direct state and local taxes. (T-0)

1.10.10.1. Immediately request assistance from the AFSVC Staff Judge Advocate’s Office (AFSVC/JA, 2261 Hughes Ave, Suite 156, Joint Base San Antonio Lackland, TX 78236-9854) to resolve any attempt by a state or local government to tax or regulate non-AAFES NAFI's alcohol purchases or sales.

1.10.10.2. Request the assistance of the Commander, AAFES, Attn: General Counsel, P.O. Box 660202, Dallas Texas 75266-0202 to resolve any attempt to tax or regulate an AAFES activity.

1.11. Breath Analyzers. The Force Support Squadron will not be allowed to use any type of breath analyzers for any activity. (T-2)

Chapter 2

SERVING OR SELLING ALCOHOLIC BEVERAGES FOR ON-PREMISES CONSUMPTION.

2.1. Governing Criteria. Clubs, golf and bowling activities are the primary providers of alcoholic beverages for on premise consumption. The installation commander will determine which other MWRF-supported activities and AAFES facilities may sell alcoholic beverages to authorized adults by the drink or in single-serving containers. (T-2) Powdered alcohol is not authorized to be sold on base in any facility. The NAFI may contract with concessionaires to sell alcoholic beverages, but not powdered alcohol, at MWR events.

2.1.1. **(Added)** The base activities that may sell or serve alcoholic beverages during normal operating hours are 1) The Club; 2) Sunrise Vista Golf Course; 3) Lodging; 4) Community Commons; 5) Nellis Express/Class Six; 6) Landings' Express; 7) Creech Express; 8) Nellis Service Station, 9) Nellis Main Exchange, 10) Nellis Commissary.

2.1.2. The Air Force prohibits alcoholic beverages in any youth program building and outdoor area or at any function sponsored by or for the youth program. (Refer to AFI 34-144, *Child and Youth Programs*.)

2.1.3. Managers may sell alcoholic beverages for on-premises consumption in all lodging facilities. If the lodging manager does not provide this service, a MWRF-supported activity may do so.

2.1.3.1. Lodging managers will not operate bars but may sell the following kinds of packaged alcohol:

2.1.3.2. Distilled spirit miniatures (or, if not available, 200 milliliter sizes). (T-2)

2.1.3.3. Wine coolers and other premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume (not to exceed 375 milliliters). (T-2)

2.1.3.4. Wine (no larger than 1 liter containers). (T-2)

2.1.3.5. Beer (by the bottle or can). (T-2)

2.1.3.6. AAFES food facilities may sell beer, wine and premixed commercial drinks (if less than seven percent alcoholic content by volume) for on-premises consumption. **EXCEPTION**: AAFES-operated name brand fast food outlets normally may not sell alcoholic beverages (see **Paragraph 2.1.4.1**.).

2.1.4. The installation commander may allow:

2.1.4.1. AAFES-operated name brand fast food outlets to sell beer, wine coolers and premixed commercially packaged alcoholic beverages with less than seven percent alcohol content by volume if the chain offers the same products in the local community.

2.1.4.2. AAFES-operated full-service restaurants to sell wine and beer by the glass with meals.

2.1.5. An AAFES facility that is not authorized to sell alcoholic beverages may request a waiver from HQ United States Air Force Services (HQ USAF/A1S). AAFES facilities will route any such request through AFSVC/CC, 2261 Hughes Ave, Suite 156, Joint Base San Antonio-Lackland, TX

78236-9854. (T-2) The request explains how permitting the facility to sell would be beneficial to both consumers and the Air Force

2.1.6. Base restaurants and other facilities supported by a civilian welfare NAFI may sell these kinds of drinks for on-premises consumption when approved by the installation commander:

2.1.6.1. Beer (by single serving size).

2.1.6.2. Wine coolers (by single serving size).

2.1.6.3. Premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume.

2.1.6.4. Wine and beer by the glass with meals, when approved by the installation commander.

2.1.7. Alcoholic beverages may be consumed on installation and other Air Force off- installation-related facilities or areas as designated in writing by the installation commander. Approval authority may not be delegated. Units will comply with the following directives:

2.1.7.1. Prior to the approval and consumption of alcoholic beverages within other installation facilities or areas, the requestor (squadron or unit commander, civilian leader or equivalent authority) develops and submits a safe transportation plan for Airmen and their guests who may consume alcoholic beverages while attending the approved function. (T-2)

2.1.7.2. With installation commander facility designation for alcohol consumption, alcoholic beverage consumption within a squadron or unit may be considered for approval on a limited basis for Airmen and their guests during the following enumerated functions: Hail/Farewell recognition, promotion and retirement celebrations, mini-flight celebrations, squadron or unit heritage anniversary celebrations, family day celebrations, picnics and other functions/events upon request. (T-2)

2.1.7.3. **(Added)** Alcoholic beverages are authorized to be consumed in government quarters assigned to accompanied and unaccompanied personnel, outside picnic areas, transient quarters, privatized family housing units, Desert Eagle RV Park, transient lodging facilities, and sports fields during scheduled intramural activities. Open containers are not authorized in common areas inside lodging facilities.

2.1.7.4. **(Added)** Alcoholic beverages are authorized to be consumed in unit or squadron heritage rooms at commander-approved times, ensuring mission and unit readiness are not negatively affected.

2.1.7.5. **(Added)** Guests/Occupants shall not sell alcoholic beverages in government quarters assigned to accompanied and unaccompanied personnel, including outside picnic areas, transient quarters, privatized family housing units, Desert Eagle RV Park, transient lodging facilities and ball fields.

2.1.7.6. Squadron or unit commanders and the appropriate leadership team concerned remain primarily responsible for the safety of all Airmen and their guests who attend squadron/unit events where alcoholic beverages are served. Airmen and guests are expected to conduct themselves in a professional manner and exercise proper decorum at all times during squadron/unit functions and especially while consuming alcoholic beverages on the installation. (T-2)

2.1.8. Air Force medical and religious facilities may dispense alcoholic beverages in accomplishing their mission.

2.1.9. When approving a request to serve and consume alcoholic beverages in on-base areas (not designated for this purpose) the installation commander may require the alcoholic beverages be sold and dispensed only by an authorized Force Support Squadron or AAFES activity.

2.1.10. **(Added)** On-base concerts, field days, and other base-wide special functions are allowed to have alcoholic beverages available. Only Dram Shop trained individuals under direct control of 99th Force Support Squadron personnel are authorized to sell and serve alcoholic beverages at these events.

2.2. Vending Machines. Units will not use vending machines to sell alcoholic beverages in the United States, its territories or possessions. (T-0)

2.2.1. Outside the United States, its territories and possessions, installation commanders may approve vending machine sales of beer in transient quarters, dormitories and dining facilities for on-premises consumption.

2.2.2. The installation commander will develop a base supplement that sets up the following minimum controls for facilities with vending machines:

2.2.2.1. Hours of operation that comply with mission requirements. (T-0)

2.2.2.2. Supervision of machines during operating hours. (T-0)

2.2.2.3. Authorized use of the machines. (T-0)

2.2.2.4. Safeguarding of machines during non-operating hours. (T-0)

2.3. Private Organizations: Private organizations will not sell or serve alcoholic beverages on Air Force installations. (T-1) EXCEPTION: At the discretion of the installation commander, NAFI operated MWR programs may secure the aid of volunteers or persons providing gratuitous services to assist in the sale of MWR-procured alcoholic beverages. NAFI operated MWR programs may also enter into contractual agreements with booster clubs associated with military units or other on-installation private organizations, under which the military unit booster club(s) or private organization(s) provides (provide) qualified personnel to assist the NAFI in selling alcoholic beverages at MWR events in exchange for a fee. Fees paid to military unit booster clubs or private organizations are deposited into the appropriate accounts; units will not require Airmen to participate in the event. (T-2) This may also apply to cosponsored events, such as air shows, open houses or other special installation events. All personnel assisting the NAFI's MWR program to sell alcoholic beverages at such events receive appropriate training as outlined within this AFI, **Paragraphs 1.6** and **1.7** above.

2.4. Air Force Sponsored Aircraft. Authorized distinguished visitors and their guests may consume alcoholic beverages on Air Force sponsored aircraft. For higher headquarters oversight, submit on a monthly basis a mission requirements log to AFSVC via the portal. If alcoholic beverages are sold, FSS will create a special NAFI to manage the funds in accordance with AFMAN 34-201, *Use of Nonappropriated Funds (NAFs)*. (T-1)

2.5. Unauthorized Beverages. Activity managers must not allow individuals to bring personal supplies of alcoholic beverages into buildings or on the grounds where activities sell or serve alcohol. (T-1)

2.5.1. The sale of pre-mixed and packaged alcoholic energy drinks in FSS activities is prohibited.

2.6. NAF Operations under the Food Transformation Initiative (FTI) or other Concessionaire Contract.

2.6.1. The contract operator will be responsible for executing their beverage program IAW this instruction. (T.1)

2.6.1.1. Any agreement entered with a contractor under a concessionaire contract provides remuneration to the NAFI.

2.6.2. The FTI contract operator will be responsible for purchasing, at no cost to the government, a Federal Liquor Wholesaler's or Retailer's Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco and Firearms (ATF). (T-0)

2.6.3. In the United States, each contract operator contracted with the NAFI that sells retail alcoholic beverages must be registered with the Alcohol, Tobacco Tax and Trade Bureau (ATTB). (T-0) The contract operator will submit a copy of the registration to AFSVC/SVFM to maintain central registration for each NAFI. (T-0)

2.6.3.1. Obtain information and forms to apply for wholesale or retail alcoholic beverage permits and tax stamps from the Department of the Treasury, Internal Revenue Service, Bureau of Alcohol, Tobacco and Firearms, 1401 H. Street NW, Suite 900, Washington DC 20226-5000.

2.6.4. The FTI contract operator must provide Alcohol, Tobacco and Firearms (ATF) officers with purchase orders, invoices, stock record cards, inventories, and other related documents on request. (T-0)

2.6.5. The FTI contract operator or other concessionaire contract operator (and their staffs) shall adhere to the following:

2.6.5.1. FTI contractor or other concessionaire will not sell powdered alcohol on base. (T-1)

2.6.5.2. Any serving of alcoholic beverage is in accordance with DoD and AFI instructions, regulations and manuals, NAFI contractual terms and local, state and federal laws. (T-0)

2.6.5.3. The contractor is solely responsible for its operations in ensuring full compliance with alcohol guidelines and regulations associated with maintenance of the NAFI's or contractor's alcohol license at each installation, as appropriate. (T-0)

2.6.5.4. For service locations and catered events where alcoholic beverages are served, contractor's employees are trained by the contractor in the safe service of alcohol, staff is certified in providing this service (to the extent that certification is available), and staff follows Dram Shop liability theory practices and procedures outlined above in section 1.6. (T-0)

2.6.5.5. Upon NAFI request, the contractor provides NAFI with proof of relevant employees' training and/or certification. (T-0)

2.6.5.6. Prior to the start date with a contractor, the Force Support Squadron and contractor come to an agreement on the transfer of inventoried bar stock to be transferred by the NAFI to the contractor. (T-0)

Chapter 3

SELLING ALCOHOLIC BEVERAGES FOR OFF-PREMISES CONSUMPTION.

3.1. AAFES. AAFES is designated as the single manager of packaged alcoholic beverage (Class Six) stores and the prime wholesaler of alcoholic beverages. AAFES is not authorized to sell powdered alcohol. The Air Force packaged beverage policy appears in AFI 34-203. *Board of Directors, Army and Air Force Exchange Service (AAFES).*

3.2. Base Force Support Squadron Activities. Force Support Squadron and other Air Force activities may not compete with AAFES to sell packaged alcoholic beverages (with the exception of lodging, reference **Paragraph 2.1.2.1**). (T-1) When approved by the installation commander, Force Support Squadron activities may sell beer, wine coolers and other commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume for off-premises consumption but must restrict these sales to time periods when AAFES-operated retail outlets on the installation are closed. Force Support Squadron may not offer packaged alcohol for lower prices than AAFES charges for the same item.

3.2.1. Packaged beer or wine sales that Force Support Squadron offers as part of a party contract, event, or takeout food and beverage operation are exempt from this restriction. Takeout operations normally may only sell 6-pack containers and similarly packaged products to include keg beer.

3.2.2. Clubs may sell bottled wines and champagnes listed on the dining room wine list for off-premise consumption under these conditions:

3.2.2.1. Clubs may not set up rooms separate from the dining room to display or sell for off-premise consumption. (T-3)

3.2.2.2. Clubs ensure that dining room list prices comply with the pricing policy specified in **Paragraph 3.6** (T-3)

3.2.2.3. Club and Class Six outlet managers must ensure that package alcohol sales are made only to patrons authorized to use the Club or Class Six store. (Refer to **Paragraph 3.4** of this AFI for specific instructions on authorized patronage and the attachment to this AFI for the definition of Class Six). (T-3) Managers must inform patrons of the maximum quantities that an individual may legally transport into or through the state, district, territory, or country where the installation-of-purchase is located. (T-3)

3.3. Establishing Class Six Outlets.

3.3.1. In the United States, installations may operate Class Six outlets when approved by the Secretary of the Air Force. AFI 34-211(I), *Army and Air Force Exchange Service General Policies*, contains procedures for establishing a Class Six store.

3.3.2. In foreign areas overseas, installations may operate Class Six outlets where there is no contradictory status-of-forces or other country-to-country or local governmental agreement.

3.3.2.1. The Commander of AFSVC with MAJCOM concurrence will be the approval authority and may approve such operations if requested by AAFES. (T-0). Authorized Patronage.

3.4. Interservice publication AFI 34-211(I) contains AAFES Class Six patronage restrictions and identification procedures.

3.4.1. Authorized patronage in overseas areas must comply with the provisions of the status- of-forces or other country-to-country agreements. (T-0)

3.5. Controlling Sales. Authorized patrons will not sell, exchange or otherwise divert packaged alcoholic beverages to unauthorized personnel or for purposes that violate federal, state or local laws, status-of-forces or other country-to-country agreements. (T-0)

3.6. Pricing. Force Support Squadron activity managers must ensure their prices for packaged alcoholic beverages containing less than seven percent alcohol by volume are not lower than those charged by AAFES and substantially uniform with other military service outlets in the same geographic area. (T-2)

3.7. Wholesale Sales. AAFES shall be the prime wholesaler of alcoholic beverages on Air Force installations. (T-0)

3.7.1. AAFES may provide all requested alcoholic beverage products to authorized Force Support Squadron and NAF-supported base activities.

3.7.2. If AAFES has stock shortages, activities selling alcoholic beverages by the drink have first priority.

3.7.3. AAFES sets wholesale prices based on the "landed cost".

3.7.3.1. A Class Six store pays for alcohol purchases (the purchase order price that the store pays, adjusted for vendor and invoice discounts, plus costs incurred to bring goods to the point of sale). AAFES assesses no additional transportation, warehousing distribution or handling charges.

3.7.3.2. AAFES notifies AFSVC/CC if exceptional conditions (national disasters, transportation strikes, etc.) arise that affect wholesale prices.

3.7.4. Sale of Class Six merchandise to any non-MWR/NAF organizations or activities will be authorized IAW AFI 34-211(I), **Chapter 11**, Paragraph **11-9.d**. Sale price is no less than full retail price or as determined by AAFES Commander.

3.7.5. Force Support Squadron and other NAF-supported activities may purchase alcoholic beverages from sources other than AAFES.

3.8. Labeling Packaged Alcoholic Beverages.

3.8.1. To remain in compliance with Public Law (PL) 100-690, Title VIII, Alcoholic Beverages Labeling Act of 1988, 18 November 1988, commanders will require all packaged containers of alcoholic beverages for resale on military installations to bear this statement: GOVERNMENT WARNING: (1) According to the Surgeon General, women should not drink alcoholic beverages during pregnancy because of the risk of birth defects. (2) Consumption of alcoholic beverages impairs your ability to drive a car or operate machinery and may cause health problems. (T-0)

3.8.2. Commanders will also require foreign packaged beverages that Force Support Squadron activities serve or sell overseas to bear the statement: GOVERNMENT WARNING: (1) According to the Surgeon General, women should not drink alcoholic beverages during pregnancy because of the risk of birth defects. (2) Consumption of alcoholic beverages impairs your ability to drive a car or operate machinery and may cause health problems. (T-0)

3.8.3. The selling activity's manager must label all beverages that the producer doesn't label. (T-0) Follow these labeling requirements:

3.8.3.1. PL 100-690 defines alcoholic beverages as any beverage in liquid form that contains not less than one-half of one percent (0.5 percent) of alcohol by volume for human consumption.

3.8.3.2. Design all labels to make the health warning statement readily legible under ordinary conditions. The statement is on a contrasting background.

3.8.3.3. Label all containers of 237 milliliters (8 ounces) or less: 1 millimeter (0.04 inches) sized lettering.

3.8.3.4. Label all containers of more than 237 milliliters (8 ounces): 2 millimeters (0.08 inches) sized lettering.

3.8.3.5. Affix labels on the container so they can't be removed without thorough application of water or other solvents.

CAVAN K. CRADDOCK, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Public Law 100-690, Title VIII, *Alcoholic Beverages Labeling Act of 1988*, 18 Nov 1988

AFI 1-2, *Commander's Responsibilities*, 8 May 2014

AFI 33-360, *Publications and Forms Management,* 1 December 2015

AFMAN 34-201, *Use of Nonappropriated Funds (NAFS),* 28 September 2018

AFMAN 34-208, *Nonappropriated Fund Property and Liability Program,* 18 September 2018

AFI 34-211(I), *Army and Air Force Exchange Service General Policies,* 11 July 2017

AFI 34-144*, Child and Youth Programs,* 2 July 2019

AFI 34-203(I), *Board of Directors, Army and Air Force Exchange Service (AAFES),* 10 July 2009

AFMAN 33-363*, Management of Records,* 1 March 2008

AFPD 33-3*, Information Management,* 8 September 2011

AFPD 34-1*, Air Force Services,* 11 October 2018

Prescribed Forms – None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Service

AFI—Air Force Instruction

AFSVC—AF Services Center

ANG—Air National Guard

ATF—Bureau of Alcohol, Tobacco and Firearms

BIT—Bystander Intervention Training

DOD—Department of Defense

FOA—Field Operating Agency

FTI—Food Transformation Initiative

FSS—Force Support Squadron

HQ AAFES/PL—Headquarters Army and Air Force Exchange Service, Strategic Planning and Communications Directorate

HQ AFSVC/SVO—Headquarters Air Force Services Center, Operations Division

HQ USAF/A1S—Headquarters United States Air Force, Director of Services

HQ AFSVC/SVI—Headquarters Air Force Services Center, Installation Support Division

HQ AFSVC/SVOF—Headquarters Air Force Services Center, Operations Division, Food and Beverage Branch

HQ AFSVC/SVF—Headquarters Air Force Services Center, Directorate of Financial Management

MAJCOM—Major Command

MWR—Morale, Welfare and Recreation

MWRF—Morale, Welfare and Recreation Fund

NAF—Nonappropriated Fund

NAFI—Nonappropriated Fund Instrumentality

OI—Operating Instruction

OPR—Office of Primary Responsibility

RCS—Report Control Symbol

SAPR—Sexual Assault Response Coordinator

TLF—Temporary Lodging Facility

UCMJ—Uniform Code of Military Justice

USAF—United States Air Force

Terms

Adult—A person 21 years old or over. Personnel 18 to 21 years old are adults if so defined by the law of the state, territory, possession, or foreign country where the installation is located. If a state, territory, possession, or foreign country prohibits alcoholic beverages or has no prescribed drinking age, an adult is a person 18 years old or older.

Alcoholic Beverages—Potable beverages containing any amount of ethyl alcohol.

Bases in the United States—Bases located in the 50 states and the District of Columbia.

Class Six Store or Annex—The building or space within a building that serves as the main or supplementary point-of-sale for packaged (off-the-shelf) alcoholic beverages for off-premise consumption.

Container—The innermost sealed container, regardless of the packaging material, in which the bottler places an alcoholic beverage for commercial sale.

Distilled Spirits—Alcoholic beverages produced by distilling.

Dram Shop Theory—A theory of legal liability under which servers of alcoholic beverages (facility owner, operator or employee) can be held liable for damages when they continue to serve alcoholic beverages to a customer who reaches or appears to be nearing the point of intoxication and the customer then brings harm to property, the customer or others.

Force Support Squadron Activity—Any activity operated by the base Force Support Squadron.

Low Alcohol, Nonmalt Beverage—A premixed, commercially packaged alcoholic beverage with less than seven percent alcohol content by volume.

Malt Beverage—Beer, ale and malt liquor derived from yeast-induced fermentation of malted cereal grain to which hops have been added.

Minor—An individual who doesn't meet the minimum age requirements for lawfully consuming alcohol.

Name Brand Fast Food Outlet—A fast food outlet easily identifiable as a part of an off-base fast- food chain.

Nonalcoholic Beverage—A beverage containing no alcohol.

Powdered Alcohol—Alcohol prepared in a powdered or crystalline form for either direct use or consumption after the powder is combined with a liquid.

Wine—A beverage made from the fermented juice of grapes or from other agricultural products